

AGREEMENT TO REFER DISPUTES TO ARBITRATION

(under section 10A of the Industrial Disputes Act)

Agreement made at.....this.....day of ... between XYZ Co. Ltd a Company registered under the Companies Act, 1956 and having its registered office at... hereinafter referred to as "the Company" of the one part and M/s-ABC Union, a Trade Union registered under the Trade Unions Act, 1926 and a body corporate by the said name having its office at ... hereinafter referred to as "the Union" of second part.

WHEREAS.

(1) The Company owns a factory at ... wherein about 500 workers are employed by the Company to do several acts and operations. The factory mainly manufactures.....

(2) The Union is engaged in carrying Trade Union activities primarily for the purpose of regulating the relations between workman and employer or between workman and workman or between employee and employees or for imposing restriction, conditions on the conduct of any trade or business.

(3) A majority of the workers in the Company's said factory are members of the Union and the Union claims to represent the workers.

(4) Certain trade disputes have arisen between the Company and Its workers in the said factory as a result whereof the workers have gone on indefinite strike after giving proper notice to the Company of the proposed strike.

(5) The said disputes are set out in detail in the schedule hereunder written.

(6) After some negotiations between the representatives of the Company as well as of the Union it has been agreed between the parties that the said disputes should be referred to the arbitration instead of adopting other procedures provided by the Industrial Disputes Act, 1947 as contemplated by Section 10A of that Act.

(7) The parties have agreed to appoint two Arbitrators one appointed by the Company and the other appointed by the Union and have also agreed to appoint an Umpire.

(8) The parties have now agreed to enter into this agreement for referring the said disputes to arbitration on the terms and conditions hereinafter recorded.

Now, it is agreed and decided by between the parties hereto as follows:

(1) That the parties hereto agree to refer all the disputes (stated in the schedule hereunder written and hereinafter referred to as the said disputes) between the Company and the workers employed in the said factory above referred to and represented by the Union to the arbitration of Mr.....appointed by the Company and Mr.....appointed by the Union. The said two Arbitrators will appoint an Umpire but if they fail to concur in making the appointment of the Umpire within a period of... days from the date on which they or any of them receives, written intimation of their appointment as Arbitrators, then the Umpire will be the person nominated by the Chairman of the Board of Directors of that Company and which person shall be a retired Judicial Officer or Judge.

(2) The Arbitrators shall decide the said disputes by following the procedure consistent with the principles or rules of natural justice.

(3) For and before such decision the Arbitrators will have to take oral and documentary evidence produced by the parties and also after giving hearing to the representatives of the Company and the Union. The Arbitrators may disallow, if they so think proper, the parties being represented by any lawyer.

(4) The parties will also be entitled to file their statements and arguments relating to each item of disputes within such time as may be directed by the Arbitrators.

(5) The decision of the Arbitrators if common will be binding on the parties hereto but if the Arbitrators differ in respect of any item of the said disputes they shall refer the same to the Umpire whose decision will be final and binding on the parties. The Umpire will decide the disputes referred to him as aforesaid on the basis of the record of evidence before the Arbitrators but unless he was not present alongwith the Arbitrators at the time of hearings and arguments of the party's representatives before the Arbitrators, the Umpire will give a fresh hearing to the representatives of the parties hereto. The parties will not be entitled to produce any fresh or new evidence before the Umpire except in very special circumstances which will be recorded by the Umpire.

(6) During the proceedings before the Arbitrators, the Umpire will be entitled to remain present and watch the same.

(7) If any other employees or workmen who are not parties to this agreement but are concerned in the said disputes or any of them may appear before the Arbitrators or the Umpire pursuant to any notice published under sub-section 3A of Section 10A of the said Act of 1947 and the Arbitrators shall give them opportunity to present their case before the Arbitrators.

(8) On the execution of this agreement, the strike declared by the workers of the said factory shall be suspended till the making of the award in any event.

(9) This is a statutory Arbitrator and nothing in the Arbitration and Conciliation Act of 1996 will apply to this arbitration.

(10) A copy of the agreement shall be sent by the Company to (a) the Assistant Labour Commissioner (Central), the Regional Labour Commissioner (Central), the Chief Labour Commissioner (Central) and the Secretary to the Government of India (Department of Labour and Employment).

(11) The Company declares that the total number of workers in the said factory is ... and the total estimated number of workmen affected or likely to be affected by the disputes is

(12) The Arbitrators will make their award within a period of three months from the date of their entering upon the Arbitration but within ... month from the date of publication of this agreement in the Official Gazette of the Government of India in any event. If the matter is referred to the Umpire for reasons aforesaid, he will make his award within the period of ... months from the date the matter is referred to him. If the award of the Arbitrators or the Umpire is not made within the said period as aforesaid, this agreement and the arbitration proceeding will stand cancelled and the parties will stand relegated to the same position as subsisted before the date of this agreement.

IN WITNESS WHEREOF the parties have put their hands the day and year first herein above written.

Signed for and on behalf of withinnamed XYZ Co. Ltd.

By Mr. ... Managing Director Duly
authorised in that behalf In the presence of

Signed for and on behalf of the withinnamed ABC Union by

Mr.....duly authorised in that behalf

In the presence of ...